

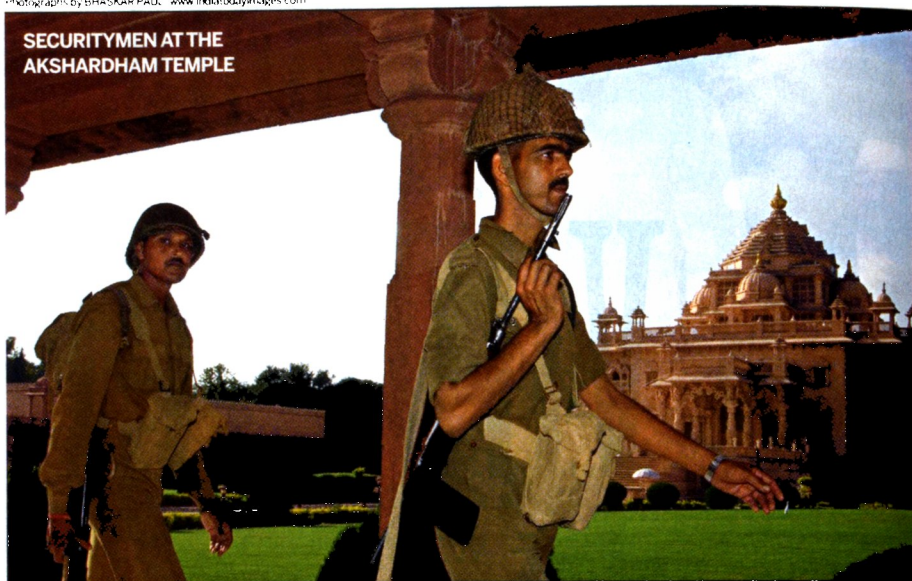
By Uday Mahurkar

For too long, a combination of shoddy investigations, inadequate evidence and political pressures led to many terrorists walking away with a smile on their faces or, at worst, a light sentence. Now in the space of less than a month, judges in different parts of the country have handed out sentences that will hopefully deter terrorists from setting out to kill. First there was Amir Ajmal Kasab. And last week, a two-judge bench of the Gujarat High Court confirmed the death sentence awarded by a POTA (Prevention of Terrorism Act) court in 2006 to three local collaborators of the Akshardham attack in 2003, jointly conducted by operatives of the Lashkar-e-Toiba (LET) and Jaish-e-Mohammed (JEM) that killed 33 innocents. POTA, which had been enacted by the National Democratic Alliance (NDA) Government, was repealed by the United Progressive Alliance (UPA) a few months after it took over.

The verdict sent a stern message to foreign terrorists and their Indian collaborators that the system will show no mercy. Never before have death sentences been awarded in a high-profile terror case under the provisions of POTA. It was after sustained pressure from a section of the minority community which alleged that POTA was being misused by the police that the act was repealed by the UPA Government after it came to power in 2004. Among the three whose death sentence was confirmed was Chand Khan, 36, a JEM operative originally from Anantnag who had helped in the procurement and delivery of arms and ammunition to the two AK-47-wielding Pakistani terrorists. These two were killed by security personnel after a night-long gunbattle a day after the attack on the temple. Abdul Qayoom Mansuri, 38, a radical Deobandi maulvi who arranged for the stay of the two Pakistani terrorists in Bavahir hall in Dariapur, helped them pack their weapons and also arranged for their final namaz before the September 24, 2003, temple attack. The third, Adam Ajmeri, 46, is a rick-

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SECURITYMEN AT THE AKSHARDHAM TEMPLE



No Mercy for TERROR

Death to the collaborators in the 2003 attack signals the hardened resolve of investigators and the courts

shaw driver in Ahmedabad and the brother of Saudi Arabia-based Rashid Ajmeri who was given the task of coordinating the terror attack on the Hindus of Gujarat as a revenge for the 2002 Gujarat riots. The group of Indians and Pakistanis who planned the attack from their base in Saudi Arabia as part of a larger conspiracy adheres to the radical brand of Wahabism, signified in South Asia by Deoband school and its missionary outfit Tableeghi Jamat and another outfit called the Ahl-e-Hadis.

Significantly, 24 of the total 33 accused in the Akshardham case are still absconding. Two of the accused, Murtaza Hafiz Yasin and Ashraffi Mohammed Farooq who hail from Pakistan's Punjab and who actually

stormed the Akshardham temple were killed in the gunbattle with security personnel while two others were caught later. The absconders include both Pakistanis and Indians. The key Pakistanis are all maulvis—Qari Mannan, Abu Hujaba and Qari Abul Jamil—who not only instigated Indian and Pakistani Muslim youth settled in Saudi Arabia but also organised funds for weapons and logistics. Among the key Indians settled in Saudi Arabia and still absconding are Abu Hamza and Abu Talha, both from Hyderabad, who are the main conspirators along with Rashid Ajmeri.

Significantly, still on the run are another two Indians living in Saudi Arabia who hail from the Bharuch district of south Gujarat. Both Iqbal